

IN THE COURT OF CHANCERY OF THE STATE OF DELAWARE
Case No. 2025-0458-CB

TELECOM INNOVATIONS, INC.,
Plaintiff,

v.

COSMOS DATA SOLUTIONS, LLC,
Defendant.

MOTION TO DISMISS PLAINTIFF-S VERIFIED COMPLAINT AND REQUEST FOR INJUNCTIVE RELIEF

TO THE HONORABLE COURT OF CHANCERY OF THE STATE OF DELAWARE:

Defendant Cosmos Data Solutions, LLC (·Cosmos· or ·Defendant·), by and through undersigned counsel, hereby files this Motion to Dismiss the Verified Complaint filed by Plaintiff Telecom Innovations, Inc. (·Telecom· or ·Plaintiff·) and further requests injunctive relief against Plaintiff-s ongoing interference with Defendant-s contractual and business operations. In support thereof, Defendant states as follows:

I. INTRODUCTION

1. Plaintiff Telecom seeks to hold Defendant Cosmos liable under breach of contract and tortious interference theories relating to an alleged data services agreement dated March 1, 2025 (the ·Agreement·). Yet, Plaintiff-s Verified Complaint is legally deficient, factually unsupported, and barred by the governing Delaware law.
2. Cosmos moves to dismiss the Complaint pursuant to Court of Chancery Rule 12(b)(6) for failure to state a claim upon which relief can be granted, as Plaintiff-s claims are contradicted by the unambiguous terms of the Agreement and Delaware precedent.
3. Furthermore, Cosmos respectfully requests injunctive relief to prevent Plaintiff Telecom from unlawfully impeding Cosmos-s ongoing contractual relationships with third parties, which threatens irreparable harm to Defendant-s business pending final resolution of this dispute.

II. STATEMENT OF FACTS

4. Cosmos is a Delaware limited liability company specializing in cloud data solutions and big data analytics headquartered in Wilmington, Delaware.
5. Telecom is a Delaware corporation engaged in telecommunications infrastructure and network services.
6. On March 1, 2025, Cosmos and Telecom executed a ·Data Service and Licensing Agreement· (the ·Agreement·) whereby Cosmos agreed to provide Telecom with proprietary data analytics services for a term of 36 months. The Agreement is governed by Delaware law and contains an integration clause, limiting disputes to arbitration absent express written waiver.
7. Section 8.3 of the Agreement specifically requires that all disputes be resolved via binding arbitration conducted in Delaware, expressly precluding litigation absent mutual consent.
8. On January 15, 2027, Plaintiff filed the Verified Complaint in this Court alleging breach of contract arising from Cosmos-s purported failure to provide certain analytics modules by December 31, 2026, as well as tortious interference with Telecom-s third-party clients.
9. The Complaint fails to identify any express or implied waiver of the arbitration provision and attempts to invoke this Court-s jurisdiction improperly.

10. Plaintiff Telecom further alleges that Cosmos is interfering with Telecom's clients by soliciting business using the proprietary telecom data. Defendant denies all allegations.

III. LEGAL ARGUMENT

A. STANDARD OF REVIEW

11. A motion to dismiss under Court of Chancery Rule 12(b)(6) tests the legal sufficiency of a complaint. The Court must accept all well-pleaded factual allegations as true but need not credit conclusory statements or legal conclusions unsupported by facts. See *Williams v. Geier*, 671 A.2d 1368, 1382 (Del. 1996).

12. Plaintiff's Complaint fails to state cognizable claims as pled, and dismissal is appropriate.

B. PLAINTIFF'S CLAIMS ARE BARRED BY THE ARBITRATION CLAUSE

13. The Agreement's Section 8.3 mandates mandatory, binding arbitration for all disputes between the parties, effectively divesting this Court of jurisdiction unless both parties agree otherwise.

14. Delaware courts have recognized and enforced such arbitration provisions vehemently. See *Nemec v. Shrader*, 991 A.2d 1120, 1126 (Del. 2010) ("Delaware law favors enforcement of arbitration clauses according to their terms.").

15. Plaintiff's unilateral filing seeking judicial relief violates the clear, express language of the Agreement and should be dismissed for lack of jurisdiction or, at minimum, stayed pending arbitration.

C. PLAINTIFF FAILS TO ALLEGE BREACH OF CONTRACT

16. Even assuming arguendo jurisdiction exists, Plaintiff's breach of contract claims are factually deficient.

17. Section 4.1 of the Agreement defines deliverables and milestones, with the December 31, 2026 date relating to non-material "beta" modules. Cosmos has delivered all required core analytics services under Sections 4.1 and 4.2, which Telecom has accepted.

18. The Complaint's vague allegations of delay fail to allege material breach or resulting damages sufficient to sustain a claim under Delaware contract law. See *Malone v. Brincat*, 722 A.2d 5 (Del. 1998).

D. PLAINTIFF FAILS TO STATE A TORTIOUS INTERFERENCE CLAIM

19. The Complaint's tortious interference claim is wholly conclusory and unsupported by specific facts alleging improper conduct by Cosmos.

20. Paragraph 23 of the Complaint summarily alleges interference with third-party clients, but provides no detail as to the existence of contracts, intentional acts by Defendant, or damages.

21. Under Delaware law, such claims require proof of "intentional interference without justification causing damage." See *Beam Laser Sys., Inc. v. Cox Communications, Inc.*, 117 A.3d 287, 309 (Del. 2015). Telecom fails to meet this burden.

IV. REQUEST FOR INJUNCTIVE RELIEF

22. Despite the procedural defects, Cosmos seeks immediate injunctive relief to prevent Plaintiff's ongoing unlawful interference with Defendant's contractual and business relationships, consistent with the terms of the Agreement and Delaware law.

23. Plaintiff has recently contacted and solicited Cosmos's customers, including NexaCom Network Services, in direct violation of the non-solicitation clause at Section 9.4 of the Agreement.

24. Cosmos is suffering irreparable harm in the form of lost business opportunities, damage to reputation, and breach of confidential information protections. Monetary damages alone cannot adequately remedy these harms.

25. Pursuant to Court of Chancery Rule 65, Cosmos requests a preliminary injunction enjoining Telecom, its agents, employees, and representatives from soliciting, contacting, or interfering with Cosmos's clients or customers pending resolution of the arbitration proceedings.

26. Cosmos will provide an appropriate bond if so required by the Court.

V. CONCLUSION

WHEREFORE, Defendant Cosmos Data Solutions, LLC respectfully requests that this Court:

- a. Dismiss Plaintiff Telecom Innovations, Inc.'s Verified Complaint in its entirety for failure to state a claim and lack of jurisdiction due to the arbitration provision;
- b. Enjoin Plaintiff and its agents from interfering with Cosmos's contractual relationships and soliciting Cosmos's clients pending final resolution of this dispute;
- c. Award Defendant such other and further relief that the Court deems just and proper.

Dated: February 20, 2027

Respectfully submitted,

/s/ Amanda L. Reynolds
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CERTIFICATE OF SERVICE

I hereby certify that on February 20, 2027, a true and correct copy of the foregoing Motion to Dismiss was served electronically via File & Serve Express upon the following counsel of record:

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